

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Shevani Patel	Team: Team # 5	CCRB Case #: 201300209	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 12/22/2012 12:30 PM	Location of Incident: Over the telephone	Precinct: 46	18 Mo. SOL 6/22/2014	EO SOL 6/22/2014	
Date/Time CV Reported Sun, 12/23/2012 12:06 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 01/07/2013 10:02 AM		

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]

Witness(es)	Home Address
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. POM Gary Capellan	07470	950154	PBBX

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Albert Castillo	07524	950175	PBBX

Officer(s)	Allegation	Investigator Recommendation
A.POM Gary Capellan	Discourtesy: PO Gary Capellan spoke rudely to § 87(2)(b) [REDACTED]	[REDACTED]
B.POM Gary Capellan	Abuse: PO Gary Capellan threatened to seize § 87(2)(b) [REDACTED]'s property.	[REDACTED]

Case Summary

On December 23, 2012, § 87(2)(b) filed the following complaint with IAB where it received original log number 12-65877. On January 7, 2013, IAB referred the complaint to the CCRB.

On December 22, 2012, § 87(2)(b)'s boyfriend, § 87(2)(b) and his friend, § 87(2)(b) were arrested while driving § 87(2)(b)'s vehicle by officers from Patrol Borough Bronx. On that same date, at approximately 12:30 p.m., § 87(2)(b) received a call from PO Gary Capellan of the Patrol Borough Bronx who told her, "We have your boyfriend over here and your little flashy car. I'm going to make this car mine if you don't get your fucking ass over here within half of an hour. I'll make your car mine for nine months depending on how I feel" **(Allegations A and B)**. § 87(2)(b) and § 87(2)(b) who were in a cell at the 46th Precinct stationhouse, observed PO Capellan make the telephone call, but they did not overhear the conversation. § 87(2)(b) went to the 46th Precinct stationhouse where she recovered her vehicle.

IAB listed PO Capellan as the subject officer. § 87(2)(b) and § 87(2)(b) described PO Capellan as a Hispanic male in his late twenties or early thirties. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

From January 14, 2013 to February 11, 2013, five calls were made to § 87(2)(b). On January 14, 2013, § 87(2)(b) provided a telephone statement. During that same telephone call, the undersigned investigator also spoke with § 87(2)(b) and § 87(2)(b) who were able to provide a description of PO Capellan. However, because they did not witness or overhear the conversation, they were not scheduled for a sworn statement. Upon completion of the telephone statements, § 87(2)(b) scheduled a sworn statement for January 24, 2013, which she failed to appear to without notifying the undersigned investigator beforehand. On January 29, 2013 and February 8, 2013, two please call letters were sent to § 87(2)(b). These letters were not returned by the United States Postal Service. On February 11, 2013, § 87(2)(b) scheduled a second appointment for February 19, 2013. During this conversation, the undersigned explained to § 87(2)(b) that her case would be closed if she failed to appear for her second interview without any notification. On February 19, 2013, § 87(2)(b) failed to appear to her interview without calling to cancel or reschedule. On February 21, 2013, a search of the NYC Department of Correction website did not indicate that § 87(2)(b) was incarcerated. § 87(2)(g)

§ 87(2)(g)

Team: 5

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date